IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CIVIL) Nos. 9419-9423/ 2024

IN THE MATTER OF:-

DR. ANCHE NARAYANA RAO DATTATRI
& ANOTHER PETITIONERS

VERSUS

THE STATE OF KARNATAKA & ORS. RESPONDENTS

IMPLEADING APPLICANT:

DR. VIJAYA KUMAR K.R
Aged 43 years
S/o. G. Rangaswamy,
PROFESSOR & HOD,
DEPARTMENT OF RADIO DIAGNOSIS
BANGALORE MEDICAL COLLEGE AND RESEARCH
INSTITUTE, BANGALORE – 560 002

TO,

THE HON'BLE THE CHIEF JUSTICE OF INDIA
AND HIS COMPANION JUDGES OF THE
HON'BLE SUPREME COURT OF INDIA

THE HUMBLE APPLICATION OF
THE PETITIONER ABOVE NAMED

MOST RESPECTFULLY SHOWETH:

1. The Applicant was the 3rd respondent in W.P. No. 4740/2024 on the file of a learned Single Judge of the

Hon'ble High Court of Karnataka, Bangalore, which a certain Dr. R. Arun Dasan who was working as the Head of the Department of Radio Diagnosis at the Bangalore Medical College and Research Institute, Bangalore, had filed most respectfully submits that in the facts and circumstances of the case which have been quite exhaustively narrated by the respondents 1, 2 and 3 in their Application for vacating the ad-interim order dated 29.04.2024 passed by this Hon'ble Court in the aforementioned Special Leave Petition, most respectfully submits that for an effective and proper adjudication of the aforementioned Special Leave Petitions he is a proper party, in whose absence on record, any decision that this Hon'ble Court would pass in the said petitions may have a binding effect on his service conditions and in particular on his position as the Head of the Department of the Radio-Diagnosis at the aforementioned Institution, hence this Application.

2. The facts of the case stated in brief, which have impelled the applicant to present this application for being impleaded as a respondent in the aforementioned Special Leave Petitions are the following.

3. The Bangalore Medical College and Research Institute affiliated to the Rajiv Gandhi University of Health Sciences (RGUHS), Karnataka, the said Institute conducts under graduate, post graduate and super

speciality courses, in accordance with the Regulations framed by the National Medical Commission (NMC). In all, in the State of Karnataka 22 autonomous Medical Colleges are being run. The Karnataka Institute of Medical Sciences (KIMS) Hubballi, Dharwad District, Karnataka State is one such autonomous Medical College being run ad maintained by a Society which has been registered under the Karnataka Societies Registration Act, 1960, and is largest Multi Speciality Medical Institution having 2400 beds, 6000 to 7000 admission per month, 200 students pursuing their studies for the award of Bachelor of Medicine and Bachelor of Surgery (M.B.B.S), and 180 post graduate in Super Speciality students with teaching posts sanctioned in the year 1998. It is a grant-in-aid Institution which receives financial aid from the Government of Karnataka for its maintenance and payment of emoluments to its staff.

3. Keeping in view the fact that different autonomous colleges and super speciality hospitals in the State had different Regulations and Cadre & Recruitment Rules had given room for their legal proceedings and also unrest among the staff of the 22 autonomous Medical Colleges in the State, it was felt by the Government of Karnataka that uniform Rules and Byelaws would require to be framed and brought into force for governing all the said Institutions. Therefore a virtual special common meeting of the respective governing councils of the said

Institution having been held in the Chairmanship of the Hon'ble Minister for Medical Education on 22.12.2023, the Byelaw dealing with rotation of the Head of Departments numbering 416 existing in the said 22 institutions be framed. Accordingly Byelaw No.20 was introduced which reads thus:

> *"**20. Rotation of Head of Department**:*
> *In the Department where there are more than one Professor, the HOD shall be rotated among them. Each Professor serving as a head for a period of three years or superannuation whichever is earlier and so in the order of seniority or as notified by Government from time to time.*
>
> *The EPAR of all HOD's current and preceding shall be reviewed by the Director/Director Cum Dean of the institute in case of medical college and by the Director in case of super speciality hospitals respectively.*
>
> *The Director / Director cum Dean and CAO shall ensure due diligence for seniority in the implementation of the same in their respective institute.*
>
> *Provided for serving as HOD there is no vigilance or departmental enquiry / criminal case is pending against the concerned staff".*

4. Based on the said decision which is in tune with the Rules prevailing in almost all the reputed and recognized Medical Institutions of the country including the Zipmar,

AIMS, etc., the Dean & Director of the Bangalore Medical College & Research Institute issued an Official Memorandum dated 06.02.2024, implementing the said Byelaw and posting the applicant as the Head of the Department of Radio Diagnosis at the Institute. Consequently a certain T. Arul Dasan with effect from 06.02.2024, the applicant has been serving as such. The said Official Memorandum translated which is couched in the Regional Kannada Language is filed herewith as **ANNEXURE-1**.

5. The applicant having assumed the said position immediately thereon, has been functioning as the Head of the said Department since 06.02.2024.

6. Assailing the said Byelaw as also the said O.M., replacing the said Dr. Arun Dasan as the Head of the Department of Radio Diagnosis at the Bangalore Medical College and Research Institute, the former filed a writ petition in W.P. No.4740/2024 before the Hon'ble High Court of Karnataka at Bangalore. Since an identical Byelaw similarly worded was adopted by the KIMS, Hubballi, the same was challenged by the petitioners in the instant Special Leave Petitions, before the Hon'ble High Court of Karnataka, Dharwad Bench, Dharwad. Thus, the very same subject matter as to the validity of the Byelaw was being agitated before not only the Hon'ble High Court of

Karnataka at Bangalore but also before the Hon'ble High Court of Karnataka, Dharwad by the respective parties.

7. Even though it was expedient and proper that either the writ petition filed in the Hon'ble High Court of Karnataka at Bangalore had been transferred to the Dharwad Bench or *vice-versa*, a learned Single Judge who heard the matter at Dharwad allowed the said writ petitions by his order dated 23.02.2024 in W.P. Nos. 100726 and 100725/2024 on his file. A copy thereof is already on record in the instant Special Leave Petitions as Annexure-P8 at pages 265 to 286.

8. Even though a passionate request was made before the learned single judge before whom the writ petition of Dr. Arun Dasan and a certain Dr. Vishwanath H.L. had been posted that the writ petitions before the said learned Judge had to be examined independently on the grounds urged in the writ petition, the learned Single Judge did not accede to the said submission but allowed the said writ petitions, holding that "the Co-ordinate Bench of this Court, while dealing with identical Bye-Law 20 of KIMS Bye-Laws, 2024, has not acceded to the respondent's contention in supporting the Bye-Laws 2024 impugned therein. The Co-ordinate Bench has allowed the writ petitions and the orders by which the private respondents were sought to be appointed as head of the respective departments have been set aside……..in that

Department as the HOD, by virtue of Regulation 3.10 of the 2022 Regulations, and not Bye-Law 20 as framed by KIMS……..Since the Co-ordinate Bench has dealt with the issue and has set aside the appointment of HOD on the basis of Byelaws 2024, the present petitions are also liable to be allowed in the light of the judgment rendered by the Co-ordinate Bench in the batch of writ petitions".

9. Assailing the said order of the learned Single Judge a true copy whereof is filed herewith as **ANNEXURE-2**. Not only the applicant herein but also the State of Karnataka and others have filed intra-court appeals under Section 4 of the Karnataka High Courts Act, 1961 in W.A. Nos. 558/2024 and 585/2024, they are pending adjudication before a Division Bench of the Hon'ble High Court of Karnataka at Bangalore. Preceding the same, Writ Appeal Nos. 100075/2024 and companion writ appeals filed by the State of Karnataka, the Director of Medical Education, Dr. Iswar Hosamani and Dr. Janki Torvi have been allowed by a Division Bench of the Hon'ble High Court of Karnataka at Dharwad Bench, by the well-considered verdict dated 21.03.2024, the said judgment is the subject matter of the aforementioned Special Leave Petitions in which an order has been passed by this Hon'ble Cout on 29.04.2024. A copy of the Record of Proceedings in the instant Special Leave Petitions is filed herewith as **ANNEXURE-3**.

10. Even though not only the writ appeals filed by the applicant, the State of Karnataka, the Medical Education Department and certain others are pending adjudication before a Division Bench of the Hon'ble High Court at Bangalore in Writ Appeal Nos. 558 and 585/2024, Dr. Arul Dasan and Dr. Vishwanath H.L. have filed Contempt of Court Petitions in C.C.C. (Civil) Nos. 552 and 553/2024, complaining that the order dated 28.02.2024 passed in W.P. Nos. 4738/2024(S-RES) and the companion petitions have not been implemented.

11. Even though it has been brought to the kind notice of the Division Bench at Bangalore about the pendency of the instant Special Leave Petitions, the complainants have been quite vigorously urging for the said Contempt of Court Proceedings being continued and proceeded with.

12. In the event of this Hon'ble Court either discontinuing the interim order dated 29.04.2024 or dismissing the Special Leave Petitions, ***propriovigore*** contempt of court proceedings cannot be continued.

13. In the writ appeals filed by the applicant and others though there has been an interim prayer made that the order questioned in the writ appeal be stayed the same has not so far been considered, even though the contempt of court petitions and the writ appeals have

been directed to be posted together. It is in this background that the applicant is being proceeded against in C.C.C. No. 553/2024 has been constrained to seek to be impleaded as a respondent in the instant Special Leave Petitions. Hence this Application.

14. In view of the State of Karnataka, Director of Medical Education, the KIMS, Hubballi, have filed not only application for vacating the interim order but have even filed counter-affidavit in the Special Leave Petitions the applicant most respectfully craves the kind leave of this Hon'ble Court to adopt the contents thereof ***mutatis mutandis*** as his pleadings in the instant petition, so that brevity is kept up and repetition avoided.

15. The applicant most respectfully submits in the backdrop what has been exhaustively narrated supra that it would be just expedient and necessary particularly in view of the fact that he is being proceeded against in the contempt of court petition mentioned above, solely on the ground that the Division Bench verdict dated 21.03.2024 has been stayed in the instant Special Leave Petitions.

PRAYER

It is, therefore, most respectfully prayed that this Hon'ble Court may be pleased to:-

direct that the Applicant be impleaded as an eo-nominee respondent in the aforementioned Special Leave Petitions, in the interest of justice and equity.

Drawn on: .09.2024
Filed on: .09.2024

PLACE: NEW DELHI

DRAWN ON:

FILED ON:

FILED BY:

MS. SRISHTI AGNIHOTRI
ADVOCATE FOR THE PETITIONER